

and was neither denied an opportunity to present testimony in some form on his behalf nor denied the opportunity to cross-examine witnesses.” *Cook v. Boyd* (E.D.Pa. 1995) 881 F. Supp. 171, 175; see also *In re T.N.T.* (2002) 258 Ga. App. 396 [574 S.E.2d 444, 446–447].) Likewise, Plaintiff was not denied due process where he retained counsel to represent him at the hearing on the demurrer. The Court did not prohibit Plaintiff’s counsel from arguing at the Demurrer and from otherwise representing Plaintiff as his limited scope counsel. It was plaintiff who chose not to allow his attorney to present arguments on his behalf. Based on behavior demonstrated by Plaintiff in the past, the Court finds that this tactic of retaining counsel and directing counsel not to make arguments is further delay tactics designed to keep Defendant needless engaged in a case that has no merit.

Based on the foregoing, the Court finds that there is good cause to deny Plaintiff’s Motion for Reconsideration.

### **Ruling**

Plaintiff’s Motion for Reconsideration is **denied**. Since the demurrer was sustained without leave to amend, this case is dismissed without prejudice.

**8. 9:00 AM CASE NUMBER: C25-01776**

**CASE NAME: JOHN DOE VS. ETHAN BUCKLEY**

**HEARING ON DEMURRER TO: COMPLAINT**

**FILED BY: BUCKLEY, ETHAN**

**\*TENTATIVE RULING:\***

The Court **continues** the hearing on Defendant Buckley’s demurrer to complaint to March 25, 2026 at 9:00 a.m.

**9. 9:00 AM CASE NUMBER: C25-01916**

**CASE NAME: JODI MURPHY VS. WENDY WONG, MD**

**\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

**FILED RE PETER A. MEYER RE PETER A. MEYER**

**FILED BY: ZIMMER, INC.**

**\*TENTATIVE RULING:\***

### **Summary**

Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant. The Motion is **granted**. No appearance is required at the February 11, 2026 hearing.

### **Background**

On October 27, 20205, Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant (“Motion”). The Motion was supported by the Verified Application of Peter Meyers, Esq.

### Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Peter A. Meyer, Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Meyer is an attorney licensed to practice in the State of Indiana, and in certain Federal Courts of Indiana, Illinois and Michigan. He is employed by Faegre Drinker Biddle & Reath LLP, and is resident in the firm's Indianapolis office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

### Ruling

Defendant's motion is **granted**. Peter A. Meyer, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on October 29, 2025. No appearance is required at the February 11, 2026 hearing.

**10. 9:00 AM CASE NUMBER: C25-02393**  
**CASE NAME: TOM SPIES VS. IRA HARRIS**  
**HEARING IN RE: APPLICATION FOR PRELIMINARY INJUNCTION**  
**FILED BY:**

#### **\*TENTATIVE RULING:\***

Plaintiffs Tom and Brenda Spies' motion for a preliminary injunction is **denied**.

### Background

Defendant Ira Harris represented Plaintiffs the Spies in a civil action in 2006 (*Spies v. Emley*). In June 2006 Harris withdrew from representation of the Plaintiffs due to payment issues. On July 24, 2002, Plaintiffs and Defendant signed a promissory note for \$60,000 which includes \$40,000 in existing lawyer fees, \$10,000 in passed lawyer retainer fees and \$10,000 of passed lawyer fees to be paid on 8-1-06. (Comp. ¶10.) On August 2, 2006, Plaintiff signed a trust deed and assignment of rents to secure the promissory note. (Comp. ¶11.)

Defendant and Plaintiffs ultimately won their case against the Emleys, however, a dispute over payment to Harris arose. The parties went to binding arbitration and ultimately the arbitrator decided that Defendant was owed \$78, 025.91. (Comp ¶16.) The amount was entered as a judgment in court (with interest and costs) on February 6, 2008 as \$83,541.15. (Harris RJN ex. I and Contra Costa Case No. N07-1969). Defendant recorded an abstract judgment on the Danville property (which is Plaintiffs' home).